

RESIDENTIAL TENANCY AGREEMENT

For

2 Mc Cubbin St, Footscray.

RESIDENTIAL TENANCIES ACT 1997

CONDITION OF AGREEMENT

1. THIS AGREEMENT is made on the date specified in item 1 in the Schedule hereto BETWEEN the LANDLORD whose name and address is specified in item 2 in the Schedule and the TENANT/S whose name and address is specified in item 3 in the Schedule.

PREMISES AND RENT

The LANDLORD lets to the TENANT/S the PREMISES specified in item 4 in the Schedule together with those items indicated in the Schedule, for which the RENTAL shall be the amounts specified in item 5 in the Schedule of which the first installment is payable on the date specified in item 6 of the Schedule and payable by the TENANT/S to the party specified in item 2 in the Schedule.

BOND

The TENANT/S shall pay a BOND of the amount specified in item 7 of the Schedule to the LANDLORD/AGENT on or before the signing of this Agreement.

FIXED TERM TENANCY

The term of this Agreement shall be specified in item 8 of the Schedule COMMENCING on the date specified in item 9 in the Schedule and ENDING on the date specified in item 10 in the Schedule and unless either party terminates this Agreement in accordance with the provisions of the Residential Tenancies Act 1997 this Agreement shall then continue as a periodic tenancy.

OR

PERIODIC TENANCY

This Agreement shall commence on the date specified in item 6 in the Schedule and continue until terminated in accordance with the Residential Tenancies Act 1997.

2. **CONDITION OF THE PREMISES**

The LANDLORD shall make sure that the premises are maintained in good repair.

3. **DAMAGE TO THE PREMISES**

- a) The TENANT/S shall make sure that care is taken to avoid damaging the rented premises.
- b) The TENANT/S must take reasonable care to avoid damaging the premises and any common area.
- c) The TENANT/S who becomes aware of damage to the rented premises must give notice to the Landlord of any damage to the premises as soon as practicable.

4. **CLEANLINESS OF THE PREMISES**

- a) The LANDLORD shall make sure that the premises are in a reasonably clean condition on the day one when it is agreed that the TENANT/S shall enter in to occupation of the premises.
- b) The TENANT/S shall keep the premises in a reasonable clean condition during the period of Agreement.

5. **USE OF THE PREMISES**

- a) The TENANT/S shall not use or allow the premises to be used for any illegal purpose.
- b) The TENANT/S shall not use or allow the premises to be used in such a manner as to cause a nuisance or cause an interference with the reasonable peace, comfort or privacy of any occupier of neighboring premises.

6. **QUIET ENJOYMENT**

The LANDLORD shall take all reasonable steps to make sure the TENANT/S has quiet enjoyment of the premises.

7. **ASSIGNMENT OR SUB-LETTING**

- a) The TENANT/S shall not assign or sub-let the whole or any part of the premises without consent of the LANDLORD. The LANDLORD'S consent shall not be unreasonably withheld.
- b) The LANDLORD shall not demand or receive any fee or payment for the consent, except in respect of any fees, costs or charges incurred by the LANDLORD in relation to the preparation of an assignment in writing of this Agreement.

8. **RESIDENTIAL TENANCIES ACT 1987**

Both parties to the Agreement shall comply with the provisions of the Residential Tenancies Act 1987 as they apply to each party. (Note: Reference should be made to the Residential Tenancies Act 1987 for further rights and duties).

TENANTS

1. RICH McLEAN

2. _____

ADDITIONAL TERMS

Additional terms which do not take away the rights of duties included in the residential Tenancies Act 1997 may be set out in this Section.

9. The TENANT/S shall pay all charges in respect of the re-connection and consumption of water, electricity, gas, oil and telephone where the rented premises is separately metered for these services.
10. The TENANT/S shall not do or allow anything to be done which would invalidate any insurance policy on the premises or increase the premium and the TENANT/S shall pay the LANDLORD all increased premiums and all other expenses incurred as a consequence of the breach of this term.
11. The TENANT/S agrees to pay the LANDLORD any excess amount charged or any additional premium charged by the LANDLORD'S Insurance Company as a result of accidental breakage of glass, toilet bowls and wash basins in the premises where the damage has been caused by the TENANT/S, or by anyone on the premises with the consent of the TENANT/S.
12. The TENANT/S shall indemnify the LANDLORD for any loss or damage caused by failure to ensure that care is taken to avoid damaging the rented premises by the TENANT/S or anyone on the premises with the consent of the TENANT/S. Without limiting the generality of the foregoing, the TENANT/S shall indemnify the LANDLORD for the cost of repairs to plumbing blockages caused by the negligence or misuse of the TENANT/S.
13. The TENANT/S shall notify the LANDLORD or AGENT immediately upon becoming aware of any defects in the premises or any other matter which may give rise to a liability pursuant to the Occupiers Liability Act 1983.
14. The TENANT/S shall indemnify the LANDLORD against all liability in respect of injury or damage to any third person or third party property arising from any conduct, act or omission by the TENANT/S, or the TENANT/S servants, AGENTS and/or invitees.
15. The TENANT/S shall not paint or affix any sign or any antenna onto the premises or affix any nail, screw, fastening or adhesive to the interior of the premises without the prior written consent of the LANDLORD or AGENT.
16. The TENANT/S acknowledges that it is the TENANT/S'S responsibility upon the termination of the Agreement to deliver the keys to the premises to the AGENT'S office and to continue paying rent until such time as the keys are delivered.
17. The TENANT/S shall not use the premises for any purpose other than for residential purposes without the written consent of the LANDLORD.
18. The TENANT/S shall not do or allow to be done anything that will cause the shared service facilities to become obstructed, untidy, damaged or used for any purpose other than for which they are intended.
19. The TENANT/S shall not keep any animal, bird or pet on the premises without the written consent of the LANDLORD. (Note: written consent of the Body Corporate Committee will be necessary in an own-your-own unit).
20. The TENANT/S shall deposit all rubbish including cartons and newspapers in a proper rubbish receptacle with a close fitting lid as required by the Health Department or Local

Council. Such rubbish receptacle shall be kept only in the place provided and placed out by the TENANT/S for collection by the Local Council or Health Department and returned to its allotted place.

21. The TENANT/S shall not hang any clothes outside the premises other than where provision for the hanging of clothes has been provided. The TENANT/S shall not keep or use in the premises any portable kerosene heaters, oil burning heaters or heaters of similar kind. 23. The TENANT/S shall comply with any Act, Regulation, Rule or direction of any Government, semi Government or statutory body.
22. 24. The TENANT/S shall allow the LANDLORD or his AGENT to put on the premises a notice or notices 'to let' during the last month of the term of this Agreement. The TENANT/S shall also allow the LANDLORD or his AGENT to put on the premises a notice or notices 'for sale' or 'auction' at any time during the term of this Agreement and permit access to the premises by the LANDLORD or his AGENT to present the property to prospective purchasers or TENANT/S upon 24 hours' notice or by Agreement with the TENANT/S and the LANDLORD or the LANDLORD'S AGENT.
23. The TENANT/S acknowledges that no promises, representations, warranties or undertakings have been given by the LANDLORD or AGENT in relation to the suitability of the premises for the TENANT/S'S purposes or in respect of the furnishings, fittings or appliances of the premises otherwise than as provided herein.
24. No consent or waiver of any breach by the TENANT/S of the TENANT/S'S obligation under the Residential Tenancies Act 1997 shall prevent the LANDLORD from subsequently enforcing any of the provisions of the Agreement.
25. The TENANT/S agrees to observe and be bound by the Articles of Association of the Service Company or the Rules of the Body Corporate (as the case may be) in so far as they relate to or affect the use, occupation and enjoyment of the premises and the common property provided that the TENANT/S shall not be required to contribute costs of a capital nature or which would, except for the provision, be payable by the LANDLORD. The Standard of Rules of the Subdivision (Body Corporate) Regulations, if not amended apply to all Bodies Corporate.
26. In accordance with the provisions of Section 44 of the Residential Tenancies Act 1997, the LANDLORD may from time to time and at any time, other than within the terms specified in the Schedule as the fixed term, increase the rent by giving the TENANT/S at least 60 days notice of the increase.
27. This Agreement may be amended only by an Agreement in writing signed by the LANDLORD and the TENANT/S.
28. The TENANT/S shall at the TENANT/S'S expense replace all lighting tubes and globes to the premises which become defective during the term of the tenancy unless the defect is proven to be caused by faulty wiring.
29. The TENANT/S agrees to fully and regularly maintain and water the garden area, including the trees and shrubs, to mow the lawn and to remove all garden rubbish from the property.
30. If the TENANT/S wishes to vacate the premises at the expiration of this Agreement the TENANT/S shall give the LANDLORD or AGENT written notice of the TENANT/S'S intentions to vacate 28 days prior to the expiration of the Agreement. If the TENANT/S remains in occupation of the premises after the expiration of the Agreement and does not enter a new fixed term Agreement the TENANT/S must give written notice of the TENANT/S'S intention to vacate the premises specifying a termination date that is not earlier than 28 days after the

day on which the TENANT/S gives notice.

31. The TENANT/S acknowledges that pursuant to Section 428 of the Residential Tenancies Act 1997, the TENANT/S shall not refuse to pay rent on the ground that the TENANT/S intends to regard as rent paid by the TENANT/S, the BOND or any part of the BOND paid in respect of the PREMISES. The TENANT/S acknowledges that failure to abide by this section of the Act renders the TENANT/S liable to a penalty of \$1000.00
32. The TENANT/S agrees not to carry out any mechanical repairs or spray painting or any motor vehicles, boats or motor cycles in or around the property including common property. The TENANT/S also agrees to be fully responsible for the removal of any motor cycle, car or boat spare parts or bodies or any other equipment used and to fully reinstate the PREMISES or the land or common property on which it is situated to their original forthwith.
33. The TENANT/S must:
 - a) check each smoke detector in the PREMISES weekly to confirm that it is kept fully operational. These checks are to ensure the safety of the TENANT/S and the security of the PREMISES.
 - b) replace the battery in each smoke detector on or about 1 January each year (or earlier if this becomes necessary)
 - c) immediately notify the LANDLORD/AGENT of any faulty smoke detector (and confirm this advice to the LANDLORD/AGENT in writing the same day).
34. The TENANT/S acknowledges that they shall insure their possessions. The TENANT/S also acknowledges that the LANDLORDS insurance policy will not provide cover for such possessions.

TENANT/S

1. RICH MCLEAN

2. _____

SPECIAL CONDITIONS

35. Fixed Term Tenancy Notice

The TENANT/S acknowledges the right of the Landlord under the Residential Tenancies Act 1997 to issue a notice that will terminate the tenancy at the end of this fixed term agreement.

36. Locks

The Landlord acknowledges the TENANT/S right to change the locks at the rental property providing a duplicate key is given to the Landlord or his Agent. The TENANT/S acknowledges that whilst all due care and attention has been taken, the Landlord cannot guarantee that all keys to the property were returned by previous occupants.

37. Sub-Letting

The TENANT/S acknowledges that the persons named on this tenancy agreement are those who will occupy the premises during the term of the agreement, and that any changes to those occupying the premises must obtain written permission from the Landlord/Agent.

38. Bond as Rent

The TENANT/S acknowledges that the Residential Tenancies Act 1997 provides a penalty of 10 penalty units (\$1,000) if the TENANT/S refuses to pay rent "on the grounds that the TENANT/S intends to regard as rent the bond or any part of the bond paid in respect of the rented premises".

39. Smoke Detectors

The TENANT/S must check each smoke detector installed in the premises regularly to confirm that it is kept fully operational. These checks are to ensure the safety of the TENANT/S and the security of the premises. The TENANT/S acknowledges that they are responsible to replace the battery in each smoke detector on or about the 1 January each year, or earlier if necessary. The TENANT/S must immediately notify the Agent of any faulty smoke detector (and confirm this advice to the Agent in writing on the same day).

40. Contents Insurance

It is not your landlord's responsibility to insure your possessions. The landlord's insurance policy covers only the building plus any fixtures and fittings. With the ever-increasing incidence of burglary and theft, it is strongly recommended that you take out contents insurance cover.

41. Hooks/Nails

The TENANT/S agrees not to affix any hooks, nails, blu-tac or any other hanging device to walls or doors unless authorized by the Landlord/Agent, in writing.

42. Rubbish

All bottles, cans, papers and cartons must be placed in rubbish bins or removed from the property. Rubbish must not be put in cartons or plastic bags and placed outside for garbage collection.

43. Quiet Enjoyment

The TENANT/S agrees not to cause annoyance from loud music, singing or any behavior that may interfere with the quiet enjoyment of the occupants of other premises.

44. Inspections

The TENANT/S shall allow the landlord/agent to inspect the said premises, providing the landlord/agent gives the TENANT/S the required notice of intention to inspect the premises, in accordance with the Residential Tenancies Act 1997.

45. **Motor Vehicles**
Motor vehicles are only to be parked in the allocated car space/s. Where only one car space is provided, then only one car is to be parked in this area. Visitors' cars are only allowed on site in designated locations. The TENANT/S is to provide a suitable oil tray to be placed under the vehicle. There are to be no immobilized vehicles left or repairs carried out, on the premises.
46. **Use of Premises**
The TENANT/S shall use the premises for the sole occupancy, or as stated elsewhere in the lease, as a residence and keep the same in clean condition and if necessary, repair all breakage's of windows, doors, locks, fastenings or other furniture and fittings, including fuses, globes, tap washers in or belonging to the premises and shall pay the costs of clearing all stoppages and obstructions to sewer or drains belonging to the premises (when due to misuse or negligence).
47. **Lawns/Garden**
Where applicable, the TENANT/S hereby agrees to maintain the garden to the standard as was at the commencement of the tenancy. This includes, mowing, weeding and watering (especially during the hot weather). Should the garden not be maintained to this standard, the TENANT/S agrees to pay the cost of restoring same.
48. **Vacating**
If the TENANT/S wishes to vacate the premises at or after the expiration of the tenancy agreement, the TENANT/S is required to give twenty-eight (28) days notice, in writing. (Note - liability for rent does not cease until the expiration of the 28 days or the return of the keys, whichever is the latter).
49. **Cleaning**
The TENANT/S agrees that the property will be cleaned on a weekly basis, this include all rooms, toilets, kitchen etc. A professional cleaning shall be carried out at the time of vacating premises at the TENANT/S expense. The TENANT/S is to provide receipt for same.
50. **Utility Charges**
The TENANT/S acknowledges that they are responsible for the payment of all gas, oil, electricity, telephone and water including service charges. The TENANT/S agrees to notify the relevant utility companies to have these utilities transferred into their name for the duration of the tenancy agreement.
51. **Water Charges**
The TENANT/S agrees to pay all Water Usage and Sewerage Disposal accounts (where property is separately metered), during the term of their tenancy.
52. **Rental Payments**
Should the TENANT/S wish to pay the rent by personal cheque, the TENANT/S acknowledges that payment is required three (3) business days prior to the due date of the rental payment.
53. **Telephone Numbers**
The TENANT/S agrees to notify the landlord/agent of any changes of employment/telephone numbers to that set out in the original tenancy application form.
54. **Upon signing this lease agreement the TENANT/S acknowledges and accepts the state and conditions of the property. Upon vacating the property the TENANT/S must ensure the property is restored to the same condition at the TENANT/S expense.**

55. Lease-Break

Should the TENANT/S find it necessary to vacate the premises prior to the expiration of the tenancy agreement, the TENANT/S shall:

- (a) Immediately notify the landlord/agent in writing of intention to do so
- (b) Continue to pay rent in accordance with the lease until the commencement of the following tenancy or expiry, whichever is sooner
- (c) Pay the Landlord all advertising cost of relating to the new tenancy
- (d) Agree that the above costs and expenses may be deducted from the Bond, however if funds are insufficient, acknowledge that they are liable for the balance
- (e) Any associated administration costs.

56. Breach of Lease Agreement

Should the TENANT/S breach any of the conditions specified in this the tenancy agreement, the LANDLORD will terminate the lease immediately and the TENANT/S shall;

- (a) Continue to pay rent in accordance with the lease until the commencement of the following tenancy or expiry, whichever is sooner
- (b) Pay the Landlord all advertising cost of relating to the new tenancy.
- (c) Pay the Landlord any cost resulting from breach of contract.
- (d) Agree that the above costs and expenses may be deducted from the Bond, however if funds are insufficient, acknowledge that they are liable for the balance
- (e) Any associated administration costs.

57. Exclusion

The Shed/Garage at the end of the drive way is not included in the lease. Should the TENANT/S decide to use the shed the LANDLORD is not responsible for any maintenance required.

TENANT/S

1. RICH MCCLEAN

2. _____

SCHEDULE

1 DATE OF AGREEMENT 15 July 2020

ITEM 2 LANDLORD NAME Hung Ho C/O Nga Lai Estates

ITEM 3 TENANT NAME Richard W McLean
DOB 08-April-1973
DRIVER LICENCE 048843092

TENANT NAME _____
DOB _____
DRIVER LICENCE _____

ITEM 4 PREMISE 2 Mc Cubbin St, Footscray

ITEM 5 RENT \$ 1,848.00 PER CALENDAR MONTH

PAYABLE ON THE 12th OF EVERY MONTH ALWAYS IN ADVANCE.

ITEM 6 COMMENCING ON 15 July 2020

ITEM 7 BOND \$ 1,520.00 PAYABLE ON THE DAY OF COMMENCING
(NOT PAID)

ITEM 8 TERM FIXED TERM AGREEMENT OF TWELFTH(12) MONTHS

ITEM 9 COMMENCEMENT DATE 15 July 2020

ITEM 10 TERMINATION DATE 14 July 2021

SIGN BY THE LANDLORD _____

SIGN BY THE TENANTS

Tenant 1 _____

Tenant 2 _____

IN THE PRESECE OF _____ (Witness)

DATED 23-7-2020